

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Yu	Team: Squad #06	CCRB Case #: 201500654	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 04/19/2014 12:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/19/2015	Precinct: 79		
Date/Time CV Reported	CV Reported At: Mayor's Office	How CV Reported: Mail	Date/Time Received at CCRB Fri, 01/23/2015 2:12 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. POM Joel Miranda	4511	955201	PBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Carlos Rivero	31057	951153	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	B . Officer(s) Unidentified
C . POM Joel Miranda	Discourtesy: PO Joel Miranda spoke rudely to § 87(2)(b)	C . Unsubstantiated

Case Summary

On December 31, 2014, § 87(2)(b) mailed her complaint to the Mayor's Office. The CCRB received the complaint on January 23, 2015 (04 Board Review). Moreover, the complaint was filed eight months late. During her interview at the CCRB on February 18, 2015, § 87(2)(b) filed a separate CCRB complaint (case # § 87(2)(b)).

On April 19, 2014, at approximately 12 p.m., officers demanded § 87(2)(b) to open her door. § 87(2)(b) repeatedly refused to open the door for the officers. Eventually, officers equipped with riot gear proceeded to break down § 87(2)(b)'s door and four officers gained entry into § 87(2)(b)'s residence (**Allegation A**). The officers grabbed § 87(2)(b)'s arms in order to handcuff her. During the process, PO3 instructed the other officers to "break her § 87(2)(b)'s fingers" because § 87(2)(b) refused to let go of her keys and phone (**Allegation B**). § 87(2)(b) immediately complied and no force was used. When § 87(2)(b) was brought inside the ambulance, PO Joel Miranda (identified through the investigation) stated "Don't worry, God will protect you now, won't he" (**Allegation C**). § 87(2)(b) was transported to § 87(2)(b). § 87(2)(b) was not arrested or issued a summons in regards.

Mediation, Civil and Criminal Histories

This case was unsuitable for mediation due to § 87(2)(b)'s presumed mental condition based on the 911 complaint against her (NYPD Documents). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] A Notice of Claim inquiry was sent via email on April 29, 2015 (07 Board Review). The results are still pending.

Civilian and Officer CCRB Histories

- § 87(2)(b) had filed one other complaint § 87(2)(b) [redacted]
- PO Miranda has been a member of the NYPD for one year and has had no prior CCRB cases (02 Board Review).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) stated three officers were inside the ambulance escorting her to the hospital. During the transport, an officer inside the ambulance told her "Don't worry, God will protect you now, won't he?" § 87(2)(b) described the officer to be a White male in uniform, 5'11" – 6 feet tall, medium build, with salt and pepper hair, and in his 40s-50s (08 Board Review). However, through the civilians' and officer's testimonies and police documents, there were numerous units (including FDNY) that responded to the scene during the incident (08-10 Board Review). Moreover, the EMT stated that there were two officers inside the ambulance. § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

§ 87(2)(g)

Allegation A-Abuse of Authority: Officers entered § 87(2)(b) § 87(2)(b) in Brooklyn.

It is undisputed that officers damaged § 87(2)(b) s door in order to gain entry into § 87(2)(b) s apartment.

§ 87(2)(b) consistently refused to open the door for the officers throughout the incident. Moreover, § 87(2)(b) confirmed that her door was equipped with a deadbolt lock and also had various boxes and items that leaned against her door (08 Board Review). According to the EVENTS, Emergency Service Unit officers responded to the location in order to gain entry into § 87(2)(b) s residence by breaking down her door (NYPD Documents).

Several factors determine whether exigent circumstances are present for a warrantless entry: (1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry, People v. McBride 14 N.Y.3d 440, 446(2010) (01 Board Review).

The EVENT job indicated that the officers responded to a call from a tenant in § 87(2)(b) s building who complained that § 87(2)(b) threatened to “burn down the building in the name of Jesus Christ.” Additionally, the officers were notified that § 87(2)(b) was known to have a mental illness (NYPD Documents). All parties interviewed corroborated in that § 87(2)(b) refused to open the door upon numerous requests by the officers for a long period of time (08-10 Board Review). Moreover, in § 87(2)(b) s testimony, she confirmed that she had various items that were placed against the door during the incident. Therefore, ESU officers had to break down § 87(2)(b) s door in order to successfully extract her from the residence. EMS was contacted due to § 87(2)(b) s history of mental illness. Furthermore, the AIDED report confirmed that § 87(2)(b) was evaluated on the scene and taken away to § 87(2)(b) § 87(2)(b) and that she had barricaded herself in the apartment (NYPD Documents). § 87(2)(a) PHL § 18(6), § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B-Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that an officer threatened to break her fingers if she did not let go of her keys and phone. § 87(2)(b) was unable to describe which officer said the aforementioned comment. Moreover, § 87(2)(b) stated that a photo viewing would be useless because the officers were in full protective gear (08 Board Review). § 87(2)(g)

§ 87(2)(g) , it is recommended that **Allegation B** be closed as **Officer(s) Unidentified**.

Allegation C-Discourtesy: PO Joel Miranda spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that while she was inside the ambulance, an officer told her “Don’t worry, God will protect you now, won’t he.”

PO Miranda stated that he was the only officer that escorted § 87(2)(b) to the hospital. This was confirmed in PO Miranda’s memo book entry (NYPD Documents). PO Miranda denied ever speaking to § 87(2)(b). Furthermore, he did not hear any other officers saying the above statement to § 87(2)(b) (09 Board Review). EMT § 87(2)(b) confirmed that she sat in the rear of the ambulance with § 87(2)(b) and two officers. However, she did not recall the descriptions of the officers that were inside the ambulance. § 87(2)(b) denied hearing any officers speak to § 87(2)(b) during the ambulance ride (10 Board Review). PO Miranda’s and § 87(2)(b) testimonies § 87(2)(g) § 87(2)(b) s irate demeanor and that she was constantly uttering religious comments towards the officers throughout the incident (09-10 Board Review).

§ 87(2)(g) it is recommended that **Allegation C** be closed as **unsubstantiated**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date